

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA**

CASE NO. 16-60910-CIV-LENARD/VALLE

PEDRO ORTIZ,

Petitioner,

v.

**SECRETARY, FLORIDA DEPARTMENT
OF CORRECTIONS, and
FLORIDA ATTORNEY GENERAL,**

Respondents.

**ORDER ADOPTING REPORT OF MAGISTRATE JUDGE (D.E. 117),
DISMISSING SECOND AMENDED PETITION UNDER 28 U.S.C. § 2254 FOR
WRIT OF HABEAS CORPUS (D.E. 14), DENYING CERTIFICATE OF
APPEALABILITY, AND CLOSING CASE**

THIS CAUSE is before the Court on the Amended Report and Recommendation of Magistrate Judge Alicia O. Valle, (“Report,” D.E. 117), issued on February 15, 2023, recommending the Court dismiss Petitioner Pedro Ortiz’s Second Amended Petition under 28 U.S.C. § 2254 for a Writ of Habeas Corpus (“Petition,” D.E. 14), filed on or about July 12, 2016. Specifically, Judge Valle recommends that the Court dismiss the Petition as untimely and deny a certificate of appealability. (Report at 21.) The Report provides the Parties with fourteen (14) days to file objections. As of the date of this Order, no objections have been filed. Failure to file objections shall bar parties from attacking on appeal the factual findings contained in the report. See Resolution Trust Corp. v. Hallmark Builders,

Inc., 996 F.2d 1144, 1149 (11th Cir. 1993). Therefore, after an independent review of the Report and record, it is hereby **ORDERED AND ADJUDGED** that:

1. The Amended Report and Recommendation of the Magistrate Judge, (D.E. 117), issued on February 15, 2023, is **ADOPTED**;
2. Petitioner's Second Amended Petition under 28 U.S.C. § 2254 for a Writ of Habeas Corpus, (D.E. 14), filed July 12, 2016, is **DISMISSED as untimely**;
3. A certificate of appealability **SHALL NOT ISSUE**;
4. All pending motions are **DENIED AS MOOT**; and
5. This case is now **CLOSED**.

DONE AND ORDERED in Chambers at Miami, Florida this 27th day of March, 2023.


JOAN A. LENARD
UNITED STATES DISTRICT JUDGE